

25CHCV03670 25CHCV03670

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-07-01

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Case Number: 25CHCV03670 Hearing Date: July 1, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JUNE 30, 2026

MOTION FOR LEAVE TO FILE FIRST

AMENDED COMPLAINT

Los Angeles Superior Court Case # 25CHCV03670

Motion

filed: 4/7/26

MOVING

PARTY: Plaintiff

Donys Rodriguez ("Plaintiff")

RESPONDING PARTY: Defendant

Mercedes Cristina Nazareno ("Defendant")

NOTICE:

OK

RELIEF

REQUESTED: An

order granting Plaintiff leave to file a first amended complaint ("FAC").

TENTATIVE

RULING: The

unopposed motion is granted. Plaintiff to separately file the proposed FAC within 10 days of this hearing.

BACKGROUND

This is a personal injury action in which Plaintiff alleges that on 5/6/25, Defendant caused a motor vehicle collision with Plaintiff's vehicle. (Compl. ¶¶ 6, 9.) On 10/13/25, Plaintiff filed his complaint, alleging against Defendant the following causes of action: (1) General Negligence; and (2) Motor Vehicle. On 12/4/25, Defendant filed her answer.

On 4/1/26, Plaintiff filed a Notice of Death of Plaintiff. On 4/7/26, Plaintiff filed the instant motion for leave to file a FAC. No opposition has been filed to date.

ANALYSIS

"Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc. § 576.) "In a case where such an amendment can be made in furtherance of justice without jeopardizing the rights of an adverse party, it should be allowed. This, of course, assumes that neither the cause of action nor the issues involved therein will be radically changed by the proposed amendment." (Thomasian v. Superior Court (1953) 122 Cal.App.2d 322, 335–336.)

Rule 3.1324 of the California

Rules of Court requires a party moving for leave to amend to: "(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are

located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Ct., rule 3.1324(a).) "A separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Ct., rule 3.1324(b).)

Here, Plaintiff "died on November 13, 2025, approximately one month after filing the complaint in the instant action which necessitates naming his surviving spouse Concepcion Irene Menendez Moran ("Ms. Moran") as his successor-in-interest in this matter." (Pl.'s Mot. 3:4–7.) "Since Decedent has passed away, he is unable to prosecute the instant action to recover for his injuries and damages, thereby necessitating the instant Motion permitting Ms. Moran to lawfully serve as Mr. Rodriguez's Successor-In-Interest to prosecute Mr. Rodriguez's claims for injuries and other damages." (Id. at 3:18–21.)

The Court notes that Plaintiff has attached a copy of the proposed FAC to the instant motion, has indicated the proposed changes, and has included the requisite declaration pursuant to Code of Civil Procedure section 377.32. (Ex. 1 to Decl. of Michael B. Goldstein; Ex. 4 to Goldstein Decl.) The Court further notes that Defendant has failed to file any opposition to the instant motion. Based on the foregoing, and the Court's liberal policy on granting leave to amend, the Court grants Plaintiff's unopposed motion for leave to file a FAC with the proposed changes.

CONCLUSION

The unopposed motion is granted. Plaintiff to separately file the proposed FAC within 10 days of this hearing.